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The California Lawmaker Forcing Big Food to Clean Up Its Act

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Editor's Note: When Robert F. Kennedy Jr. jumped on Donald Trump's bandwagon in 2024, he brought with him the wellness-obsessed, vaccine-rejecting, food label-reading Make America Healthy Again voters who've been credited with helping Trump take back the White House. But there are signs that the MAHA–MAGA alliance is wearing thin, from squabbles over inaction to a tense standoff over regulating the herbicide glyphosate. In our MAHA and the Midterms series, a partnership between Mother Jones and the Food & Environment Reporting Network, we consider how MAHA is shaping the political landscape and upcoming elections.

The first time Jesse Gabriel was asked to consider a food safety bill, in 2023, he was wary—to say the least. Banning food dyes? It sounded a little "California woo-woo." Gabriel, a third-term Democratic member of the California Assembly, was trying to establish himself as a pragmatist. And anyway, food wasn't his thing.

Still, Gabriel took home a memo from the nonprofit Environmental Working Group (EWG). What he read, he said, was "mind blowing": Page after page laid out the potential dangers of chemicals found in everyday foods. There was Red No. 3, a colorant that had been prohibited by the Food and Drug Administration for more than 30 years in cosmetics because of links to cancer in rats, but was authorized for use in the food we eat. There was potassium bromate, a dough conditioner banned in food in the European Union, China, India, and Brazil, but found in store-bought pastries and breads in the United States. He also learned about the so-called GRAS loophole, which permits US food companies to legally declare their own ingredients "generally recognized as safe" and to add them to the food supply without regulatory review.

"My eyes were opened to a situation that, frankly, I had no idea existed," Gabriel said. "I always assumed there was someone in Washington, DC, watching my back. When I learned that that wasn't the case, it actually made me angry."

That same year, Gabriel introduced the California Food Safety Act, which proposed banning five chemical additives: Red No. 3, potassium bromate, brominated vegetable oil, propylparaben, and titanium dioxide, a whitener then found in Skittles. Industry pushed back hard on what was soon dubbed the "Skittles ban"—a moniker that garnered headlines worldwide. But to no avail. After the bill was signed in October 2023, Gabriel's staff jokingly gave him a Skittles pillow, with felt candies visible through a plastic window, which still sits on his office sofa.

As a presidential candidate and later as secretary of Health and Human Services, Robert F. Kennedy Jr. put a new spotlight on potential dangers lurking in common foods, whipping up fear and outrage at the way federal regulators do—and, for the most part, don't—police ingredients. Yet even as he and his Make America Healthy Again movement have touted food reform, the FDA under Kennedy has so far taken little meaningful regulatory action, opting to try to extract voluntary commitments from manufacturers instead.

Meanwhile, Gabriel has continued to introduce bills that have become laws banning certain dyes and additives from school lunches and establishing the nation's first statutory definition of ultraprocessed foods. Yes, these are state laws, but, given California's huge market, ones with outsize impact: It's typically impractical for food manufacturers to reformulate their products state-by-state. And in any case, Gabriel's laws have served as models: Similar food policy bills have since been introduced in 43 states, and 15 have passed legislation.

Gabriel has succeeded by educating colleagues on both sides of the aisle and forgoing political tribalism for bipartisan compromise. "Jesse Gabriel is determined to make progress, not just drop bills and issue press releases," said Scott Faber, senior vice president for government affairs at EWG, which co-sponsored the California Food Safety Act. In a few short years, "he's passed more food legislation than the most heralded food legislators have in

their whole careers."

With Kennedy either unable or unwilling to enact meaningful regulation, Gabriel has quietly become America's de facto food safety chief. He and his counterparts in legislatures across the country are addressing concerns that cross party lines and succeeding where national political leaders have repeatedly failed. With the midterms looming and Democrats still searching for messages that resonate beyond their base, Gabriel is proving that smart food safety regulations are winning politics.

Gabriel, 45, has trim dark hair and a boyish face. In interviews, he is prepared, earnest, and polished—too polished, perhaps, in a moment when authenticity is signaled by unfiltered rants. When I asked him about the food he ate growing up, he said his parents were "mindful," but he also ate lots of pizza and ultraprocessed food. He hesitated before continuing, "I don't want my mom to be angry at me about what I said about her."

Political engagement was a family tradition. Both of Gabriel's parents were involved in protest movements while students at the University of California, Berkeley. Even as a child growing up in Southern California, Gabriel set his sights on becoming the third generation to attend the famously liberal university. Once there, he became deeply involved in campus politics, becoming president of the student government, a job that included overseeing 105 staffers and a $20 million budget. James Gallagher, a conservative Republican who served in the Assembly until he won a US House seat in a special election in June, went to Berkeley with Gabriel and remembers him as a tactician with a "knack for maneuvering things and being able to put himself in a position to pass things that he cared about."

After college, Gabriel ticked the boxes of a progressive rising star: studying constitutional law at Harvard, working on the legal team that defended immigrant Dreamers at the Supreme Court. But he wasn't focused on elected office until 2018, after the Assembly member in his suburban Los Angeles district resigned in a #MeToo scandal. Spurred by the chaos of President Donald Trump's first term, Gabriel ran a campaign that promised to stand up to the administration, prevent gun violence, and defend progressive values. "Food," Gabriel said, "wasn't on my dance card."

The $2.5 trillion food industry is used to getting its way. Attempts to regulate it are typically met with manufactured doubt about nutrition science, accusations of nanny-statism, and a reflexive defense of that all-American value: personal choice. Back in 2023, nearly two years before RFK Jr. built MAHA into a political force, Gabriel's Republican colleagues—and many in his own party—were sympathetic to the industry's concerns. As trade associations like the National Confectioners Association and American Beverage Association ramped up lobbying, some expressed concerns about regulatory overreach.

Gabriel responded by knocking on the doors of every Democrat and Republican on the committees that would decide whether to bring the California Food Safety Act to the floor. He explained the Kafkaesque system in which nearly 99 percent of new chemicals that enter the food supply use GRAS to bypass FDA review. He reframed the very idea of choice, arguing that parents really didn't have one when the grocery store was filled with unknown, untested ingredients. He traded on his reputation as a "proud incrementalist" and moderate. "I don't color outside the lines a lot," he told me. "So I think people thought, if he's worked up about this issue, there must be something going on."

It worked. Shock at how little FDA oversight existed brought his colleagues around, just as it had for him. "I walked into a room with Republican colleagues who were like, 'Happy to take time with you, but I'm not supporting this bill,'" Gabriel said. "And then I'd watch them go through the same process I did."

The California Food Safety Act passed with a wide margin, including one-third of California's admittedly small Republican caucus. But Gabriel made compromises to get there. The law ultimately banned four, not five, chemicals; titanium dioxide, once found in Skittles and more than 10,000 other food products, escaped the ban to ensure bipartisan support.

In 2024, Gabriel introduced the California School Food Safety Act, which proposed prohibiting public schools from

serving meals containing six synthetic dyes, including ones found in breakfast cereals and flavored applesauce. The Consumer Brands Association, National Confectioners Association, and California Grocers Association joined forces to oppose it. Officially, their concern was that these additives were still permitted by the FDA. But it was really about money: The federal and state government spend more than $4.5 billion feeding children in California schools. If the bill were to pass, it would effectively mean reformulating products nationwide.

Again, Gabriel barnstormed the Assembly, sharing a 2021 study of state data that suggested a link between synthetic food dyes and neurobehavioral problems, including ADHD, the diagnosis of which has increased nearly 70 percent in children over the last 20 years. He also cast the ban as a boon for the state's agricultural districts, which would have more opportunity to put their food on students' trays. "A lot of the issues here are regional, not partisan," said Heath Flora, a Republican Assembly member whose family has farmed in the Central Valley for nearly a century. "Jesse is one of those guys that's willing to look at things from an agricultural perspective."

In the end, not a single state legislator voted against the California School Food Safety Act.

By the following year, awareness of the possible dangers of food additives had surged. MAHA voters had helped swing the election in Trump's favor. RFK Jr. was trumpeting the dangers of America's lax food regulations in speeches, on podcasts, and on 60 Minutes, where he called ultraprocessed foods "poison." Suddenly, it wasn't so crazy for Republicans to take an interest in food regulation—they had political cover.

Gabriel, though, has been careful not to align himself with MAHA. Instead, he has consistently cast the new regulations as being common sense, science-based, and, notably, given that it's California and Gabriel didn't need Republican votes, bipartisan—all the things that conventional wisdom says are dead in the Trump era. "In an era of hyper-polarization," he said, "the right policy solution and the right messaging are the same thing."

By the time Gabriel's 2025 bill hit the Assembly floor, both Flora and Gallagher had signed on as co-authors. The Real Food, Healthy Kids Act established the nation's first legal definition of ultraprocessed foods—something Kennedy has yet to do at the national level. The act also sets up a process to ban some ultraprocessed foods that contain both one or more additives and a high level of sugar, salt, or fat from California schools—including vending machines. Squarely in its crosshairs are products like sugary breakfast cereals, flavored milks and yogurts, and some versions of chicken nuggets. Flora told me that industry lobbyists were "surprised we were working with Jesse on it. But we did it because he gave us a seat at the table." The bill passed the state Senate unanimously and the state Assembly by a vote of 79–1.

Gabriel's success reflects a pent-up demand for action. Eighty-four percent of Americans say it is the government's responsibility to keep food safe from harmful ingredients and pesticides, according to recent polling from progressive firm Navigator Research. Less than half believe it's doing a good job. And no wonder. RFK Jr. began his term as HHS secretary with grandiose promises to reduce industry influence. But he appears to have fallen prey to the same corporate capture that he once criticized. Following a flurry of lobbying, HHS did the bare minimum when it finally unveiled its GRAS proposal in August: requiring only that companies—after unilaterally declaring new chemical additives in their products as safe—inform the FDA. (Previously, they weren't required to report this.) Meanwhile, barely a day went by over the summer without more news of a cyclospora outbreak hitting another region of the country.

But state legislatures have taken up the slack, introducing more than 150 food safety bills since 2023. The 15 states that have passed new laws are about equally divided between red and blue. "When you ask: 'Is this FDA coming to the rescue?'" said EWG's Faber, "you quickly decide it's the state legislatures who are going to protect us."

In February, Gabriel introduced his fourth food bill, which would create a voluntary label to help shoppers identify foods with minimally processed ingredients. The bill sailed through the legislature with little discussion and was signed into law on September 19. Even the California Grocers Association backed it.

Still, Gabriel and other state legislators worry that new federal laws might undo their progress. In 2025, Sen. Roger

"Doc" Marshall, a Kansas Republican, included state law preemption in his so-called MAHA bill, which advanced several of Kennedy's priorities. But after public outcry and a near-revolt by MAHA-aligned GOP members of Congress, he was forced to strip the provision.

In April, Rep. Kat Cammack, a Florida Republican, published draft text of a bill called the FRESH Act that proposed to override all state food chemical laws with a weaker federal standard, prompting protest from food safety advocates, including Gabriel. "This is a Trojan horse for the food chemical industry," Gabriel said at a press conference. "This would move the federal government, which for many decades has been asleep at the switch, from inaction to obstruction—to actually getting in the way of public health, getting in the way of laws that are meant to protect our kids." Cammack never formally introduced her bill. But Gabriel visited Washington in the fall to educate the California delegation, in case Republicans try to quietly add the measure to a must-pass bill.

Gabriel characteristically demurred when I asked him whether he considered himself the nation's shadow food safety chief. "That would be a fairly bold claim," he said. But he did suggest that Democrats across the country might follow his lead by championing food regulation; in his eyes, it's one of the issues that actually unites people. "Eighty percent of Democrats and Republicans in Washington don't agree on what day of the week it is," he said. When it comes to food safety, "it's fairly unprecedented, the depth of the support and the depth of the response. I can't figure out why people wouldn't want to talk about it."

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